

## 20STCV11677 20STCV11677

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CASE NAME: Nobia Joyce v. Shawn M. Millner, et al.

Defendants/Cross-Complainants' Motion to Strike or Tax Trial Costs [MC-010]

### TENTATIVE RULING

The Court GRANTS in part Defendants/Cross-Complainants' Motion to Strike or Tax Trial Costs. The Court STRIKES the entire Memorandum of Costs as to Defendant/Cross-Complainant Laurence Todd and the \$2,800.00 charge for the conference room. The Court DENIES the Motion to Strike or Tax Trial Costs in all other respects.

The Court DENIES Millner's Motion to Strike or Tax Costs on Appeal

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

### BACKGROUND

This is a quiet title action. On March 20, 2020, plaintiff Nobia Joyce (Plaintiff) filed this action against defendants Shawn M. Millner, the Shawn Marie Millner Revocable Trust (collectively, Millner), Laurence Todd (Todd) (Millner and Todd may be collectively referred to as Defendants), and Does 1 through 20, alleging causes of action for quiet title, partition, declaratory relief, and ejectment and damages.

On November 29, 2022, Defendants filed a cross-complaint against Plaintiff, Stephen R. Golden, Stephen R. Golden & Associates, P.C., and Does 1 through 20. On February 2, 2024, Defendants filed the Second Amended Cross-Complaint (SACC) against the same parties, alleging causes of action for breach of the July 5, 2018 Settlement Agreement, breach of the covenant of good faith of the July 5, 2018 Settlement Agreement, fraud (No. 1), breach of the August 2018 Co-signor agreement, breach of the covenant of good faith breach [sic] of the August 2018 Co-tenant [sic] agreement, fraud (No. 2), assault, battery, false imprisonment, negligent infliction of emotional distress, intentional infliction of emotional distress, slander of title, fraud (No. 3), invasion of privacy, unjust enrichment, comparative indemnity, apportionment of fault, breach of the May 2023 Settlement Agreement, and breach of the covenant of good faith of the May 2023 Settlement Agreement.

On May 29, 2024, Defendants filed the operative Third Amended Cross-Complaint (TACC) against Plaintiff, Stephen R. Golden, Stephen R. Golden & Associates, P.C., and Does 1 through 20, alleging causes of action for battery, intentional infliction of emotional distress, slander of title, breach of contract, invasion of privacy, and unjust enrichment. On August 27,

2024, the Court dismissed cross-defendants Stephen R. Golden and Stephen R. Golden & Associates, P.C., from the TACC without prejudice.

On August 28, 2024, Plaintiff dismissed the First and Second Causes of Action for quiet title and partition as to Defendant Todd without prejudice.

On March 5, 2026, Plaintiff dismissed Todd from the complaint.

From March 17, 2026, through March 26, 2026, a jury trial was held. The jury issued a verdict in favor of Plaintiff on her ejectment claim and against Defendant Millner. The jury also issued a verdict in favor of Plaintiff on all claims in the TACC and against Defendants.

On April 22, 2026, the Court entered judgment according to the jury's verdicts.

On May 4, 2026, Plaintiff filed a Memorandum of Costs. On May 14, 2026, Defendants moved to strike or tax trial costs. On June 8, 2026, Plaintiff opposed the Motion. On June 17, 2026, Defendants replied to the Opposition. On June 25, 2026, the Court continued the hearing on the Motion to Strike or Tax Trial Costs to July 15, 2026, and ordered supplemental briefing regarding separating costs between the complaint and the cross-complaint. On June 30, 2026, Defendants filed separate supplemental briefs. On July 6, 2026, Plaintiff filed supplemental oppositions. On July 9, 2026, Defendants filed separate supplemental reply briefs.

On May 4, 2026, Plaintiff filed a Memorandum of Costs on Appeal. On May 14, 2026, Millner moved to strike or tax costs on appeal. On May 18, 2026, Millner filed an Amended Motion to Strike or Tax Costs on Appeal. On June 11, 2026, Plaintiff opposed Millner's Amended Motion to Strike or Tax Costs on Appeal. On July 7, 2026, Millner replied to Plaintiff's Opposition to the Motion to Strike or Tax Costs on Appeal.

## LEGAL STANDARD – Tax Trial Costs

### (a) Claiming costs

#### (1) Trial costs

A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.

...

### (b) Contesting costs

#### (1) Striking and taxing costs

Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the

cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).

## (2) Form of motion

Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.

## (3) Extensions of time

The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.

## (4) Entry of costs

After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment.

(Cal. Rules of Court, rule 3.1700, bold in original.)

## DISCUSSION – Tax Trial Costs

### Summary of Arguments

Defendants argues that Plaintiff's Memorandum of Costs must be struck because the underlying March 2026 jury trial was void due to the trial court's lack of subject matter jurisdiction and violations of the mandatory stay under Code of Civil Procedure section 916. Defendants assert that the Court of Appeal retained exclusive jurisdiction over both the interlocutory partition judgment and the related referee-appointment order until the remittitur issued on March 25 and 26, 2026, making all trial proceedings, including the \$70,120 verdict, legally void. Defendants contend that the trial court compounded these errors by relying on a January 29, 2026 sua sponte order that attempted to fix fatal defects in the interlocutory judgment, despite lacking jurisdiction and never issuing corrected judgments. Defendants argue that the interlocutory judgment remains permanently void under the law of the case because it awarded a collective 50% interest to a non-entity, i.e., "the Trust," in violation of *Portico Mgmt. Grp., LLC v. Harrison* (2011) 202 Cal.App.4th 464 (Portico). Based on these defects, Defendants maintain that no valid judgment exists to support a cost award, requiring the cost memorandum to be struck in its entirety.

Defendants also argue that Plaintiff is judicially estopped from recovering any trial costs because she previously declared under penalty of perjury in Defendant's 2025 bankruptcy case that her claim was limited to a 50% property interest and that she had no ejectment or loss of use claims. Defendants assert that Plaintiff used those statements to obtain an advantage in federal court, then reversed positions to pursue inconsistent claims at the state court trial. Defendants contend Plaintiff commingled time-barred 2024 bench trial expenses with 2026 jury trial expenses, failed to itemize any costs, and sought reimbursement for categories, including a \$2,800 conference room rental, that are not allowable or reasonable under Code of Civil Procedure section 1033.5. Defendants argue that Plaintiff sought a double recovery by including deposition and preparation expenses already awarded to Todd on May 13, 2026. Defendants further contend that the cost memorandum misidentifies the courthouse branch, provides no itemization, conflates separate legal capacities, and seeks costs already judicially allocated elsewhere. Defendants finally argue that the entire filing is procedurally void and must be struck or taxed to zero.

In opposition, Plaintiff argues that Defendants' core claim – that the trials and related nunc pro tunc orders are void – is meritless because both the trial court and the Court of Appeal have already rejected those jurisdictional challenges. Plaintiff contends the conference room rental cost should be allowed because it was necessary for coordinating a multi-attorney pro bono trial team, particularly as two attorneys traveled from distant cities and the team required consistent workspace to prepare effectively. Plaintiff maintains that clerical errors such as listing the wrong courthouse on the cost memorandum are insignificant because the correct case number, judge, and department were provided, and Defendants suffered no prejudice. Plaintiff further argues that worksheets detailing costs are not required unless specific cost items are challenged, and other than the conference room, Defendants raised only generalized objections. Plaintiff also asserts that costs from the 2024 bench trial are not time barred because the final judgment was not entered until 2026, and that no “double subsidy” exists, since each party's deposition costs relate to different litigation needs.

In reply, Defendants argue that Plaintiff's opposition ignores the central, fatal defects that render the entire cost request void, namely, that the second-phase jury trial was conducted while the Court of Appeal still retained exclusive jurisdiction, making all proceedings before the remittitur legally void. Defendants maintain that the trial court's January 29, 2026 sua sponte order improperly attempted to modify an already-appealed judgment, further violating the mandatory stay under Code of Civil Procedure section 916 and tainting all subsequent trial activity. Defendants also contend that Plaintiff cannot recover costs because the underlying judgment is unenforceable, as Plaintiff failed to name the indispensable trustee in any operative complaint, meaning the quiet title and partition judgment is void and cannot support a prevailing party cost award. Defendants argue that Plaintiff's lump sum cost memorandum is defective because it fails to itemize expenses between the valid and void trial phases or between separate parties and claims, preventing the Court from determining which costs are legally recoverable. Defendants further assert that Plaintiff's cost demands are premature in a partition action, where all litigation expenses must be allocated through the partition referee's final accounting after the property sale. Finally, Defendants argue that the statute of limitations now bars any attempt to bind the trustee, cementing the judgment's void status and requiring that Plaintiff's cost bill be reduced to zero.

In his supplemental brief, Todd argues that Plaintiff's memorandum of costs is legally defective because it improperly lumps together costs from both the complaint and cross-complaint without any allocation, despite California law treating them as separate actions with separate cost entitlements. Todd asserts that once costs are challenged, the burden shifts to the plaintiff to prove each item is reasonable and necessary, which Plaintiff has not done by failing to segregate costs. Todd also contends that Plaintiff abused the judicial process by prematurely obtaining a writ of execution while the Motion to Tax Costs was still pending, thereby attempting to enforce an unliquidated and disputed amount. Todd argues that this enforcement risks double recovery, over-collection, and undermines the court's authority to determine proper costs. Todd further contends this is procedural deception because the writ was misfiled using an entry reserved for waived court fees, rendering the writ defective and subject to being quashed.

In her supplemental brief, Millner argues that because a perfected appeal triggered an automatic stay under Code of Civil Procedure section 916, the trial court lacked jurisdiction to conduct the second-phase trial, rendering that entire proceeding and all related costs void. Millner contends that Plaintiff never properly named or served the trustee in the Complaint, meaning the trustee was never a party and cannot legally be charged with litigation costs. Millner also asserts that a general appearance cannot cure Plaintiff's failure to sue the trustee in the correct representative capacity, and thus costs cannot be imposed on the trustee. Millner contends that because Plaintiff submitted a single, unsegregated cost bill that improperly combines pre-appeal costs, void second-phase costs, and costs attributed to multiple capacities, including a non-entity trust, so the entire bill must be struck. Millner argues that the second-phase ejectment trial was jurisdictionally invalid because property interests were unresolved and subject to appeal, making any costs from that phase unrecoverable. Finally, Millner argues that Plaintiff abused the process by prematurely obtaining a writ of execution on disputed, unapproved costs, warranting a stay, sanctions, and the quashing of the writ.

In her supplemental opposition briefs, Plaintiff contends that Millner's deposition was necessary to pursue Plaintiff's action and defend against Defendants' cross-claims, as the deposition addressed, among other things, conflicts with Millner's testimony in a prior restraining order hearing which was important to show at trial that Millner lacked credibility. Plaintiff then argues that apportionment is impractical and unnecessary, and that as to Todd, it would be too difficult to apportion costs between the Complaint and Cross-Complaint<sup>[1]</sup> because the issues are inextricably intertwined and Todd bears the burden of apportioning the costs. Plaintiff contends the trial only lasted seven days and addressed issues involving both the Complaint and Cross-Complaint without any clear demarcation about which action was being addressed by which testimony. Plaintiff also contends she seeks only costs she incurred and that she seeks them after the litigation concluded. Plaintiff also

contends collection on the judgment is not at issue in this motion, so Defendants' arguments on the issue of the writ of execution should be disregarded. Plaintiff then argues that Millner's supplemental brief address previously rejected arguments and does not address the issues the Court ordered, so Millner's arguments should be disregarded. Plaintiff also contends there is nothing improper about collecting the underlying judgment and that the writ does not seek to recover costs.

## Analysis

Having reviewed the parties' supplemental briefs, the Court's tentative ruling remains largely the same as the initial tentative ruling. The Court finds Plaintiff's initial filing of the cost memorandum was sufficient to state the costs claimed and put them at issue. Plaintiff only needed to provide a verified memorandum of costs and was not required to provide an itemization worksheet at that time. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267 (Jones) [party claiming costs does not need to provide documentary evidence of claimed costs unless those costs have been put in issue via a motion to tax costs].) Plaintiff provided a verified Memorandum of Costs and therefore satisfied her preliminary burden. (Memorandum of Costs (5/4/26).) Defendants then bore the burden of identifying the costs to be challenged and providing evidence to show that Plaintiff's claimed costs were not reasonable. (See *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (Ladas) [party seeking to tax costs generally bears burden of showing that the costs were not reasonably necessary].)

The Court also still finds Defendants did not provide sufficient evidence to support striking the entire cost memorandum based on the purportedly void jury trial verdict due to the Court's purported lack of jurisdiction and violation of stay under Code of Civil Procedure section 916. As the Court stated in its initial tentative ruling, Defendants' arguments are incorrect. Code of Civil Procedure section 916, subdivision (a), expressly states that, "the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a).) The interlocutory judgment only affected Plaintiff's quiet title and partition claims. (Corrected Interlocutory Judgment (11/5/24).) The jury trial addressed only Plaintiff's ejectment claim and Defendants' cross-claims. (Special Verdict (3/26/26).) The Court's clerical correction to the interlocutory judgment therefore had no bearing on the jury trial.

Second, courts may make clerical corrections to judgments at any time. (See Code Civ. Proc., § 473, subd. (d).) A "court of general jurisdiction has the power, after final judgment, and regardless of lapse of time, to correct clerical errors or misprisions in its records, whether made by the clerk, counsel, or the court itself, so that the records will conform to and speak the truth." [Citation.] 'The correction may be made even though an appeal has been taken and is pending. [Citations.] And it may also be made after affirmance of the judgment on appeal.' [Citation.]) (In re Marriage of Boblitt (2014) 223 Cal.App.4th 1004, 1028, italics in original.) The Court's January 29, 2026 correction to the interlocutory judgment merely provided the correct name for Millner as trustee as she has appeared throughout this case. (Minute Order (1/29/26).) Also, contrary to Defendants' contention, the interlocutory judgment on file reflects the clerical correction. (Corrected Interlocutory Judgment (11/5/24).)

Third, Defendants' contentions regarding Portico are unavailing. The Court of Appeal in *Galdjie v. Darwish* (2003) 113 Cal.App.4th 1331 (Galdjie) affirmed the trial court judgment against the defendants in their individual capacities and as trustees and beneficiaries, even though the complaint only sued them as individuals and did not name them as trustees or name the trust itself. The Court of Appeal in *Galdjie* affirmed the judgment because the evidence showed that the trust was a revocable inter vivos trust where the defendants were both trustees and beneficiaries, such that their signatures on the title deed required by the judgment were sufficient to bind the trust. (See *id.* at pp. 1337, 1342, 1350.) Here, the Complaint names both Millner and her trust, so there is no confusion that Millner was being sued in both her individual capacity and as trustee. (See generally, Compl.) Also, Millner can sign the documents necessary to sell her share of the subject property per the judgment, whether individually or as trustee. As such, *Galdjie* is largely on point.

Fourth, Millner never raised this capacity issue at trial. Millner also answered the Complaint both individually and in her capacity as trustee and otherwise participated throughout this action in both capacities. (See Answer (11/28/22).) "It is settled law that where the parties and the court proceed throughout the trial upon a theory that a certain issue is presented for adjudication, both parties are thereafter estopped from claiming that no such issue was in controversy even though it was not actually raised by the pleadings." [Citation.]" (Sealite, Inc. v. Finster (1957) 149 Cal.App.2d 612, 618.) "[T]he objection of one sued individually that he should have been sued in a representative capacity or also in a representative capacity can be waived..." (Ibid.)

Fifth, as the Court noted in its order granting Plaintiff's application to replace the partition referee, perfecting an appeal for purposes of staying a judgment directing the sale of real property requires the appellant to post an undertaking. (Order Re: Tentative Ruling (2/20/25); Code Civ. Proc., § 917.4.) Defendants did not post an undertaking nor did they provide evidence of posting an undertaking, so no stay could have been in effect.

Sixth, the Court of Appeal affirmed the interlocutory judgment in favor of Plaintiff and against Defendants, which judgment provides for Plaintiff owning 50% and Millner owning the other 50% collectively as an individual and as trustee. (Remittitur (3/25/26); Corrected Interlocutory Judgment (11/5/24); see also *Pista v. Resetar* (1928) 205 Cal. 197, 199 [interlocutory judgment conclusive as to matters determined therein].) Millner also could have raised the issue on appeal from the interlocutory judgment regarding the purported issue of the judgment stating that Millner owns 50% of the property collectively as an individual and as trustee, but never did. Such argument would therefore be forfeited. (*Felder v. Felder* (1967) 247 Cal.App.2d 718, 722 [on appeal from final judgment, interlocutory judgment and order denying motion to vacate were not reviewable because the interlocutory judgment for partition had already been reviewed and affirmed, and no appeal had been taken from the order denying the motion to vacate].)

Finally, the interlocutory judgment has been incorporated into the final judgment. (Judgment (4/22/26).) Accordingly, Defendants' arguments that the judgment is void are frivolous and without merit.

Notwithstanding the foregoing, the Court does find some of Plaintiff's claimed charges improper. Regarding apportionment of costs for Todd vis-à-vis the Complaint and SACC, the Court finds that costs of the Complaint should be stricken as to Todd since Todd was dismissed from the Complaint and Todd subsequently successfully claimed costs for himself as the prevailing party. (Order Re: Court Ruling (5/13/26).) To hold otherwise would effectively vitiate Todd's status as the prevailing party in the Complaint. (See Code Civ. Proc., § 1032, subds. (a)(2), (a)(4), (b).) Plaintiff's opposition also failed to provide any evidence differentiating between costs incurred in connection with the Complaint and costs incurred in connection with the SACC. The Court is therefore unable to apportion the appropriate costs as to Todd and accordingly STRIKES the entire cost memorandum as to Todd. This was not a case where Cross-Complainants pursued a single claim in a joint trial by the same counsel. Todd represented himself on the Cross-Complaint and had a single separate cause of action against Joyce. (Cf. *Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1376.) For the sake of clarity, there is no issue of apportionment as to Millner since Plaintiff is the prevailing party against Millner as to both the Complaint and SACC.

As for the conference room charge, the Court still finds that charge was not reasonably incurred. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Plaintiff presented evidence showing that it facilitated the handling of the trial in this matter given the involvement of pro-bono attorneys from different locales throughout California who assisted Plaintiff in this matter. (Gaskins Decl., ¶¶ 2-3; Pallack Decl., ¶ 2.) However, it is unclear to the Court why so many attorneys, i.e., three from Morrison and Foerster and at least one from Neighborhood Legal Services, needed to be involved with the trial of this case. The Court finds that the rental of a conference room to provide working space for attorneys was not reasonably incurred for the trial of this case and that Plaintiff cannot pass on the overhead expense to Defendant Millner as a reasonable cost of litigation. The Court will therefore STRIKE the \$2,800.00 charge for the conference room.

Regarding the deposition costs, the Court now finds they were reasonably incurred in light of Plaintiff's supplemental opposition and a copy of the invoice showing the claimed charges were incurred for Millner's deposition. (Suppl. Opp. (7/6/26), Pallack Decl., Ex. 1; see Code Civ. Proc., § 2017.010.) The Court therefore declines to strike the \$1,301.68 for deposition costs.

Defendant Millner did not challenge any other specific items, and the Court otherwise finds Defendant Millner's remaining arguments unpersuasive. Nothing in the bankruptcy related filing from Plaintiff says anything about Plaintiff not having evidence, not having claims for ejectment or loss of use, or otherwise waiving those claims. (Bowman Decl., Ex. C.) Defendant Millner's argument regarding the caption page on the cost memorandum is also unavailing. The clerk's office corrected the mistake after Plaintiff filed it. (Memorandum of Costs (5/4/26).) There is no prejudice to Defendant Millner because the cost memorandum otherwise provided adequate notice of Plaintiff's claimed costs, which Defendant Millner addressed by filing this Motion.

Furthermore, “until a final judgment is entered in the trial itself neither party is entitled to costs. [Citation.]” (Muller v. Reagh (1960) 179 Cal.App.2d 814, 815.) Final judgment in this case was not entered until April 22, 2026. (Judgment (4/22/26).) Plaintiff therefore could not have obtained costs before the final judgment was entered. Also, Plaintiff correctly notes that Todd was awarded costs for his taking of Plaintiff’s deposition before the September 2024 trial. (Order re Court Ruling (5/13/26).)

Finally, the Court still finds Defendants’ statute of limitations arguments in their reply papers improper since these were new arguments not raised in their moving papers. New arguments are generally not permitted on reply; otherwise, a further hearing would be required to permit the opposing party to respond. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-1538; see also Alfaro v. Cmty. Hous. Improvement Sys. & Plan. Assn., Inc. (2009) 171 Cal.App.4th 1356, 1393, fn. 23 [“The general rule is that points raised for the first time in a reply brief will not be considered unless good cause is shown for the failure to present them before.” [Citation.]]).) Even then, the arguments fail for the same reasons set forth above regarding the validity of the judgment.

Based on the foregoing, the Court GRANTS in part the Motion to Strike or Tax Trial Costs. The Court STRIKES the entire Memorandum of Costs as to Defendant/Cross-Complainant Laurence Todd and STRIKES the \$2,800.00 charge for the conference room as to Defendant/Cross-Complainant Shawn M. Millner, individually and as trustee. The Court DENIES the Motion to Strike or Tax Trial Costs in all other respects.

#### LEGAL STANDARD – Tax Costs on Appeal

##### (a) Award of costs

(1) Except as provided in this rule or by statute, the party prevailing in the Court of Appeal in a civil case other than a juvenile case is entitled to costs on appeal.

(2) The prevailing party is the respondent if the Court of Appeal affirms the judgment without modification or dismisses the appeal. The prevailing party is the appellant if the court reverses the judgment in its entirety.

(Cal. Rules of Court, rule 8.278, subds. (a)(1)-(a)(2).)

##### (c) Procedure for claiming or opposing costs

(1) Within 40 days after issuance of the remittitur, a party claiming costs awarded by a reviewing court must serve and file in the superior court a verified memorandum of costs under rule 3.1700.

(2) A party may serve and file a motion in the superior court to strike or tax costs claimed under (1) in the manner required by rule 3.1700.

(3) An award of costs is enforceable as a money judgment.

##### (d) Recoverable costs

(1) A party may recover only the following costs, if reasonable:

(A) Filing fees;

(B) The amount the party paid for any portion of the record, whether an original or a copy or both. The cost to copy parts of a prior record under rule 8.147(b)(2) is not recoverable unless the Court of Appeal ordered the copying;

(C) The cost to produce additional evidence on appeal;

(D) The costs to notarize, serve, mail, and file the record, briefs, and other papers;

(E) The cost to print and reproduce any brief, including any petition for rehearing or review, answer, or reply;

(F) The cost to procure a surety bond, including the premium, the cost to obtain a letter of credit as collateral, and the fees and net interest expenses incurred to borrow funds to provide security for the bond or to obtain a letter of credit, unless the trial court determines the bond was unnecessary; and

(G) The fees and net interest expenses incurred to borrow funds to deposit with the superior court in lieu of a bond or undertaking, unless the trial court determines the deposit was unnecessary.

(2) Unless the court orders otherwise, an award of costs neither includes attorney's fees on appeal nor precludes a party from seeking them under rule 3.1702.

## DISCUSSION – Tax Costs on Appeal

### Summary of Arguments

Millner seeks to tax Plaintiff's Memorandum of Costs on Appeal filed on May 4, 2026. Millner contends this memorandum is a legal nullity because it omits the lower court case number, fails to identify either of the two appellate case numbers, provides zero supporting documentation, fails to state the capacity in which Millner is liable, and misidentifies the courthouse and branch where the action is pending. Millner contends the judgment is unenforceable against the Shawn Marie Millner Revocable Trust per Portico Management Group, LLC v. Harrison (2011) 202 Cal.App.4th 460 (Portico) and therefore cannot serve as grounds for post-appeal costs. Millner contends the March 25, 2026 remittitur establishes the interlocutory judgment as the law of the case and as absolutely final. Millner contends the January 29, 2026 order is void because the Court was powerless to amend it to correct a judicial error. Millner argues that Plaintiff's Memorandum of Costs on Appeal is a procedural defect that requires the Memorandum to be stricken and that its omission of all case numbers precludes judicial verification concerning concurrent remittiturs.

Millner contends the total absence of documentation requires all claimed fees to be stricken. Millner argues that the Court lacked subject matter jurisdiction to issue the January 29, 2026 order or conduct the jury trial before the issuance of the remittiturs. Millner contends that Defendants' appeal of the January 29, 2026 order and the automatic stay under Code of Civil Procedure section 916 materially embraced the jury trial. Millner finally argues that the cost bill fails to apportion liabilities.

In opposition, Plaintiff contends most of Defendants' arguments have been rejected by this Court and the Court of Appeal. Plaintiff contends the Memorandum has a case number on it and that the incorrect courthouse on it is insignificant. Plaintiff contends worksheets are not required because Defendant does not challenge any specific cost and that the cost bill need not apportion liability because Millner lost everything in both individual and trustee capacities.



In reply, Millner argues that Plaintiff is not entitled to recover appellate costs because the underlying judgment is void due to the trial court's failure to determine the parties' separate property interests as required by Code of Civil Procedure sections 872.720(a), 873.650, and 872.160. Millner asserts that the Court improperly relies on *Galdjie v. Darwish*, a case unrelated to statutory partition requirements, and therefore failed to follow mandatory partition statutes. Millner contends that the Court's lumping of her individual and trustee capacities into a single undivided 50% interest violates statutory mandates and clouds title, making any partition sale legally impossible. Millner further argues that the Court of Appeal's affirmance does not cure these structural statutory defects because an appellate ruling cannot validate a facially void judgment. Millner also argues that Plaintiff failed to carry her burden of proof by submitting no invoices, declarations, or supporting evidence in response to this motion to tax costs on appeal.

## Analysis

The Court finds Millner's Motion to Tax Costs on Appeal unavailing. First, if the items in the cost bill appear proper, the party seeking to tax costs generally bears the burden of providing evidence and showing that the costs were not reasonably incurred. (See *Whatley-Miller v. Cooper* (2013) 212 Cal.App.4th 1103, 1115 (*Whatley-Miller*) [if costs appear proper, the verified memorandum is prima facie evidence that the costs were necessary, and objecting party has the burden of presenting evidence challenging those claimed costs].) Second, the party claiming costs need not provide supporting documentation with the cost memorandum; the party claiming costs only needs to provide supporting documentation when the party objecting to the costs properly objects and puts the items at issue via a motion to tax costs. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267; see also *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131 [mere filing of a motion to tax costs constitutes proper objection to an item which does not appear proper on its face, but if the item appears proper on its face, the verified memorandum is prima facie evidence that the costs were necessarily incurred and the objecting party bears the burden of showing that the item is not reasonable].)

Here, Plaintiff provided a verified memorandum and the costs appear to be proper on their face. (See *Memorandum of Costs on Appeal* (5/14/26).) Accordingly, Millner bore the burden of showing that Plaintiff's claimed costs were not reasonably incurred. (See *Whatley-Miller*, supra, 212 Cal.App.4th at p. 1115.) However, Millner provided no evidence that Plaintiff's claimed costs were not reasonably incurred. Millner only presented arguments, namely that Plaintiff listed the wrong courthouse, omitted appellate court case numbers, failed to provide supporting documentary evidence, and lack of authentication. These arguments fail for the reasons set forth below.

First, as noted above, Plaintiff was not required to submit supporting documentation with the Memorandum. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) Second, Millner cited no authority showing that the case number is required before a party may claim costs. Notwithstanding, Plaintiff's Memorandum on file with the Court includes the Superior Court case number. (*Memorandum of Costs on Appeal* (5/14/26).) It appears the version Plaintiff served on Millner was missing the case number, but that still does not render the costs claimed unreasonable since there is no confusion that they are sought in this case. (See *Bowman Decl.*, Ex. A.) The Court also notes that the Judicial Council Form for the Memorandum of Costs on Appeal contains no place for the party claiming costs to provide the corresponding appellate case numbers. (See *Memorandum of Costs on Appeal* (5/14/26).) Third, Millner cited no authority showing that providing the wrong courthouse and branch on the caption page renders the costs claimed unreasonable. Notwithstanding, the Memorandum made its way to this Court, so that does not justify striking Plaintiff's claimed costs. Fourth, it is unclear what Millner means by her argument that the \$916.50 claimed for Line 1 of the Memorandum is "unauthenticated." (*Amended Motion* (5/18/26), 20:6-8.) Authentication is a rule of evidence, not a basis for striking claimed costs. (See *Evid. Code*, § 1400 et seq.) To the extent Millner is repeating the argument that Plaintiff failed to provide supporting documentation, that argument fails for the reasons already set forth herein.

The Court finds Millner's arguments regarding the validity of the judgments in this case to be unavailing for the same reasons set forth above in the Court's tentative ruling on Defendants' Motion to Strike or Tax Trial Costs. Rather than repeat those reasons, the Court incorporates them herein by reference.

Regarding the multiple remittiturs, the Court finds that argument unavailing because the remittiturs occurred within one day of each other and both appeals involved Millner, individually and as trustee, as the appellant and Plaintiff as the respondent. (See *Remittitur* (3/25/26); *Remittitur* (3/26/26).) As such, there is no confusion as to Millner's share of the liability for Plaintiff's claimed costs on appeal.

Based on the foregoing, the Court DENIES Millner's Motion to Strike or Tax Costs on Appeal.

#### CONCLUSION

The Court GRANTS in part Defendants/Cross-Complainants' Motion to Strike or Tax Trial Costs. The Court STRIKES the entire Memorandum of Costs as to Defendant/Cross-Complainant Laurence Todd and the Court STRIKES the \$2,800.00 charge for the conference room as to Defendant/Cross-Complainant Shawn M. Millner, individually and as trustee. The Court DENIES the Motion to Strike or Tax Trial Costs in all other respects.

The Court DENIES Millner's Motion to Strike or Tax Costs on Appeal

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The operative pleading is the SACC, but Plaintiff's supplemental opposition brief refers only to the "cross-complaint."